

Ethical Concepts and Theories

ILLINOIS TECH | College of Computing

Ch9: Regulating Commerce and Speech
P3: Pornography in Cyberspace



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Learning Objectives 1

Upon completion of this lesson the students should be able to:

- Define “**regulation by code**”
- Describe **Digital Rights Management** and explain why it is controversial
- Describe **spam email** and discuss if some forms of spam can be defended
- Explain the difficulties involved in **balancing free speech and censorship** in online contexts and forums

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Learning Objectives 2

Upon completion of this lesson the students should be able to:

- Describe and discuss issues associated with **online distribution of pornography**
- Discuss whether **online pornography should be censored**
- Discuss issues associated with what some view as excessive online speech: **hate speech as well as speech that can cause physical harm to others**
- Define “**network neutrality**” and explain the implications this principle has for the future of Internet regulation

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Module Objectives

Upon completion of this lesson the students should be able to:

- Describe and discuss issues associated with **online distribution of pornography**
- Discuss whether **online pornography should be censored**

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Pornography in Cyberspace

- The concept of pornography is often debated in the legal sphere in terms of notions such as *obscenity* and *indecent speech*.
- The *Miller v. California* case (1973) established that material is obscene when it:
 1. depicts sexual (or excretory) acts whose depiction is specifically prohibited by law.
 2. depicts these acts in a patently offensive manner, appealing to prurient interest as judged by a reasonable person using community standards.
 3. has no serious literary, artistic, social, political, or scientific value.

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Pornography (continued)

- The Miller Case has been problematic in enforcing pornography laws, in part, because it includes three controversial notions:
 - 1) “prurient interest”;
 - 2) “reasonable person”;
 - 3) “community standards.”

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Censorship (Continued)

- The term *prurient* is usually defined as having to do with lust and with lewd behavior (but this definition has been challenged as being vague and arbitrary).
- We can ask *who would* (and *who would not*) count as a "reasonable person."
- The notion of a "community standard" is no longer simple and straightforward because we can ask:
- What is a community in cyberspace?
- Where multiple communities are involved in a dispute involving pornography, whose community standards apply?

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Censorship/Pornography

- A now classic case involved the Amateur Action BBS (Bulletin Board System), located on a server in California, which made sexually explicit images available to its members.
- Because the BBS was an electronic forum, its contents were available to Internet users who resided in other states, and in other countries.

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The Amateur Action BBS (Continued)

- A person living in Memphis, Tennessee downloaded on his computer in Tennessee sexually explicit pictures from the BBS.
- Including sexually explicit images on a BBS was not illegal in California, but viewing such images was illegal in Tennessee.
- Criminal charges were brought against the operators of the California-based BBS, who were prosecuted in Tennessee.

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Censorship/Pornography

- The California couple was found guilty under Tennessee law of distributing obscenity, under the local "community standards" that applied in Memphis Tennessee.
- But what, exactly, do we mean by "community standards" on the Internet?
- What is a "community" in cyberspace?
- We examine both questions in detail in Chapter 11 in our analysis of online communities.

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Internet Pornography and Protecting Children Online

- in 1995, many first learned about the amount of pornographic material on the Internet in a story entitled *CyberPorn* in *Time* Magazine.
- *Time* reported that there were 900,000 sexually explicit pornographic materials (pictures, film clips, etc.) on the Internet.
- Critics point out that the study (A Carnegie Mellon report) on which the *Time* magazine story was based was seriously flawed.

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Internet Pornography and Protecting Children Online (Continued)

- While the study accurately reported the number of pornographic images and pornographic Web sites, it did not put this information into proper perspective.
- For example, the study made no mention of the fact that the percentage of pornographic sites relative to other sites on the Web was very low.

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Online Pornography Laws

- Many U.S. lawmakers were outraged when they learned about the amount of pornography on the Internet from the account in *TIME* Magazine.
- The report influenced politicians, who drafted legislation in response to what they saw as a growing online "pornography industry."
- As a result, the Communications Decency Act (CDA) was enacted into law in early 1996.

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Online Pornography Laws (Continued)

- The CDA was controversial because of the section of the bill referred to as the "Exon Amendment," which dealt exclusively with online pornography.
- In 1996, CDA was struck down by a U.S. District Court in Philadelphia on grounds that it was too broad and that it violated the U.S. Constitution.
- However, a portion of the CDA, known as the Child Pornography Protection Act (CPPA) of 1996, was determined to be constitutional.

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Child Pornography Laws (Continued)

- In 1998, the U.S. Congress passed the Child Online Pornography Act (COPA).
- But in 1999, the U.S. Supreme Court ruled that COPA was unconstitutional.
- So, by 1999, the only remaining federal law specifically directed at online pornography that had withstood constitutional scrutiny was the CPPA of 1996 (a section of the original CDA).

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Child Pornography Laws

- CPPA was also controversial because it broadened the definition of child pornography to include entire categories of images that many would not judge to be either:
 - "child pornographic," or
 - pornographic at all.
- Child pornography, according to CPPA, is:
...any depiction, including a photograph, film, video, picture, or computer or computer-generated image or picture, whether made or produced by electronic, mechanical, or other means, of sexually explicit conduct...

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Child Online Pornography Laws (Cont.)

- According to CPPA, it was a crime to "knowingly send, receive, distribute, reproduce, sell, or possess more than three child pornographic images."
- In 2002, the U.S. Supreme Court, in a 6-3 ruling, struck down a controversial section of CPPA as unconstitutional.

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Online Child Pornography Laws (Continued)

- In 2000, the U.S. Congress enacted into law the Children's Internet Protection Act (CIPA)
- CIPA was designed to address concerns about children's access to "offensive content" over the Internet on school and library computers.
- CIPA was targeted specifically to schools and libraries.
- It affected any schools or public libraries that receive federal subsidies in the form of E-Rates, i.e., discounts which make certain technologies more affordable for eligible schools and libraries.

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Pornography (Continued)

- Under CIPA, schools and libraries cannot receive the discounts offered by the E-Rate Program unless they certify that they have an “Internet safety policy” in place.
- This policy includes technology protection measures to block or filter Internet access by minors to pictures that are:
 - obscene,
 - child pornography,
 - harmful to minors.

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Pornography (Continued)

- Both the American Library Association (ALA) and the ACLU filed suit to prevent the enforcement of CIPA’s filtering requirement in public libraries.
- In 2002, a U.S. district court ruled that the CIPA filtering mandate was unconstitutional.
- But in 2003, the district court’s decision was overturned by the U.S. Supreme Court, which upheld CIPA in a 6-3 decision.

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Table 9-1: Internet-specific Child Pornography Laws

CDA (Communications Decency Act)	Passed in January 1996 and declared unconstitutional in July 1996. The lower court’s decision was upheld by the US Supreme Court in 1997.
CPPA (Child Pornography Protection Act)	Passed as part of the larger CDA, but was not initially struck down in 1997 with the CDA. It was declared unconstitutional in April 2002.
COPA (Child Online Pornography Act)	Passed in June 1998 and (portions) declared unconstitutional by the US Supreme Court in February 1999.
CIPA (Children’s Internet Protection Act)	Passed in December 2000 and declared unconstitutional by a U.S. district court in 2002. The Supreme Court overturned the lower court’s ruling in June 2003.

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Child Pornography Laws and “Sexting”

- Sexting is typically defined as the use of cell phones (or similar handheld electronic devices) to send nude or semi-nude photos of oneself to others.
- In some cases these photos become widely distributed and can eventually end up on the Internet.

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Child Pornography Laws and Sexting (Continued)

- Review Scenario 9-3 (in the textbook) which describes a sexting incident at Greensburg Salem High School.
- Should the six teenagers at this high school have been charged with either dissemination or possession of child pornography?
- Were the original felony charges brought against them too harsh?
- Alternatively, are misdemeanor charges too lenient in sexting cases?

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Child Pornography Laws and Sexting (Continued)

- Hilden (2013) believes that instead of applying older child pornography laws that were designed for “graver and much more exploitative contexts,” we should “craft new laws designed specifically for sexting.”
- She agrees with critics of the Greenburg case, that the initial charges brought against the six Pennsylvania teenagers were too harsh.

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Child Pornography Laws and Sexting (Continued)

- Hilden believes that lawmakers should consider two kinds of “exceptions” to child pornography laws in sexting cases:
 1. a “Romeo and Juliet” exception (which is sometimes used in statutory rape laws where consensus is involved);
 2. an “age-specific” exception.
- She also notes that the Romeo and Juliet exception could apply when the two parties to an act of sex are close in age (say 18 and 16, or 15 and 17).

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Child Pornography Laws and Sexting (Continued)

- It would seem Hilden and other critics are correct in noting that that most teenagers who have been prosecuted for sexting have not engaged in behavior that meets the threshold of crimes intended for prosecution as felonies under child pornography laws.
- But there is also evidence to suggest that sexting is a serious offense and that it needs to be dealt with appropriately in the legal and judicial systems.
- The best short-term solution in the U.S. would be drafting some kind of federal standard that could be applied to sexting cases occurring in all states.

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